

however the agreement has since broken down. The matter was continued to allow Mr. Moody to obtain counsel. **An appearance is necessary on today's calendar.**

ESTATE OF HAROLD MONTGOMERY JR.

CASE NUMBER: 23PB-0032233

This matter is on calendar for hearing on a Successor Petition for Probate of Will. The will purports to give the entirety of the estate to the trustee of a trust. The Court notes the previous trustee was the Personal Representative of the estate and has passed away. Item 8 fails to identify the successor trustee of the trust. Due to the defect, the Court is unable to determine if proper notice has been provided and the requirement of a bond properly waived. The matter is continued to **Monday, June 29, 2026, at 2:30 p.m. in Department 44** for further proceedings on the Petition for Probate of Will. Petitioner is required to file an amended Petition to address the issue raised above. Petitioner is also required to file and serve a new Notice of Hearing for the continued hearing date, along with a copy of the amended Petition, on all parties entitled to notice. **No appearance is necessary on today's calendar.**

ESTATE OF LINDA NIERENBERG

CASE NUMBER: 25PB-0032814

This matter is on calendar for hearing on a Sixth Amended Petition to Determine Succession to Primary Residence. The Court notes the Petition was revised by the Judicial Council on April 28, 2025, for mandatory use. Petitioner has used the prior version of form DE-310, "Petition to Determine Succession to Real Property." The Declaration filed by Counsel on April 6, 2026, requests that the Petition be determined under the prior version of Probate Code Sections 13150-13154. Petitioner contends that because the decedent died and the Petition was filed prior the revision of Probate Code Sections 13150-13154, the prior versions of the statutes apply. The prior versions do not require that the real property be the decedent's primary residence. Probate Code Sections 13150-13154 were revised pursuant to AB 2016 and became effective January 1, 2025 (not April 1, 2025).

Counsel further argues that Probate Code Section 13150(f) specifies that the applicable statutory framework depends on the date of death of the decedent. There is no language in the statutes limiting their application to the date of death. Probate Code Section 3(c) provides that, "a new law applies on the operative date to all matters governed by the new law, regardless of whether an event occurred or circumstance existed before, on, or after the operative date, including, but not limited to, creation of a fiduciary relationship, death of a person, commencement of a proceeding, making of an order, or taking of an action." Subsection (d) goes on to specify that:

"If a petition, account, report, inventory, appraisal, or other document or paper is filed before the operative date, the contents, execution, and notice thereof are governed by the old law and not by the new law; but any subsequent proceedings taken after the operative date concerning the petition, account, report, inventory, appraisal, or other document or paper, including an objection or response, a hearing, an order, or other matter relating thereto is governed by the new law and not by the old law."

The Sections apply as of the effective date, despite that the Judicial Council did not publish the revised form DE-310 until April 28, 2025. The original Petition in this case was filed on February 14, 2025, (not March 11, 2025), therefore the revised statutes applied at the time of filing.

This matter has been continued ten times to allow Petitioner to provide sufficient facts to show that the real property was the decedent's primary residence as required by Probate Code Section 13152. The